

TENTATIVE RULING

Brian Lofman
v.
Hartnell College, et al.
24CV004063

Plaintiff's Motion to Compel Further Responses as to Privilege Log Entries 62-64.

Hearing Date: July 10, 2026

Plaintiff Brian Lofman ("Plaintiff") moves to compel Defendants Hartnell College ("Hartnell"), Steven Crow, and Dianna Rose (collectively, "Defendants") to (1) produce the three emails listed as entries 62, 63, and 64 in Defendants' May 4, 2026, privilege log; and (2) serve further, code-compliant privilege log descriptions. [See Plaintiff's Proposed Order.] Alternatively, Plaintiff requests that this Court order Defendants to submit the emails for in camera review. Plaintiff also seeks monetary sanctions. [Code Civ. Proc. § 2031.310, subd. (h).] Defendants oppose the motion, asserting attorney work-product protection and the attorney-client privilege, and contend that their privilege log is sufficient.

Based on the parties' papers and applicable legal authorities, Plaintiff's motion and request for sanctions are **DENIED**.

Background and the Parties' Arguments.

On January 12, 2026, Plaintiff served document requests, some of which relate to a mediated global settlement that failed because no signed agreement was reached. [Matsuhara Decl. at ¶ 2.] The current dispute involves Defendants' refusal to produce three emails dated September 12, 2025. [Dixon Decl. at ¶¶ 2-3 and Exh. 1.] These emails, which are identified as Nos. 62, 63, and 64 in Defendants' privilege log were exchanged among three defense counsel: workers' compensation panel counsel (Mullen & Filippi), Labor Code section 132a counsel (Laughlin, Falbo & Moresi), and civil counsel (Fenton & Keller). [*Ibid.*] Defendants characterize these emails as "Correspondence between counsel re: legal strategy and settlement":

62	9/12/2025	Email	From: Jacob Babcock	To: Elizabeth Leitzinger, Laura Speakman, Alyssa Carbonel Matsuhara	Correspondence between counsel re legal strategy and settlement.	Attorney Work Product
63	9/12/2025	Email	From: Laura Speakman	To: Elizabeth Leitzinger, Jacob Babcock, Alyssa Carbonel Matsuhara	Correspondence between counsel re legal strategy and settlement.	Attorney Work Product

64	9/12/2025	Email	From: Elizabeth Leitzinger	To: Jacob Babcock, Laura Speakman, Alyssa Carbonel Matsuhara	Correspondence between counsel re legal strategy and settlement.	Attorney Work Product
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[Privilege Log, Exh. 1 to Dixon Decl. at Nos. 62-64.]

Plaintiff, in his motion, contends the emails directly relate to Defendants' request to credit the \$50,000 paid in a workers' compensation Compromise & Release against a proposed \$275,000 civil settlement. [Motion at 5.] He argues that these emails were shared between lawyers representing different parties with conflicting interests (the workers' compensation administrator, Hartnell directly for section 132a, and Hartnell's civil insurer), so the common-interest privilege doesn't apply. [Reply at 4-5.] Additionally, Plaintiff claims the privilege log descriptions are generic and inadequate. [Motion at 11-12.]

Defendants argue that all legal counsel represented Hartnell directly or via its self-insured workers' compensation administrator, Keenan. [Matsuhara Decl. at ¶ 2 and Exhs. A-B; Opp. at 3.] They claim the emails include attorney impressions, conclusions, and settlement strategies, which are protected under the work-product doctrine and attorney-client privilege. [Opp. at 3-6.] Additionally, Defendants contend that Plaintiff has not demonstrated good cause for in camera review and that any sanctions request should be rejected. [*Id.* at 7.]

Legal Standards.

1. Work-Product Doctrine.

California's work-product doctrine grants absolute protection to any written material that reflects an attorney's "impressions, conclusions, opinions, or legal research or theories." [Code Civ. Proc. § 2018.030, subd. (a).] Other types of work product are protected only if the court decides that disclosing them would unfairly prejudice the opposing party seeking discovery. [*Id.* at subd. (b).] The party claiming this privilege must carry the burden of proving the initial facts that support its claim. Once proven, the communication is deemed confidential. [*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 733.]

Work-product protection is not waived when shared among attorneys jointly representing a common client or its insurer/administrator, including within a tripartite relationship. [*Bank of America, N.A. v. Superior Court* (2013) 212 Cal.App.4th 1076, 1083, 1090.] Attorneys representing an insured, insurer, or administrator may freely share protected legal opinions without waiving work-product protection. [*Fireman's Fund Ins. Co. v. Superior Court* (2011) 196 Cal.App.4th 1263, 1274.]

2. Attorney-Client Privilege and the Common-Interest Doctrine.

The attorney-client privilege safeguards confidential communications between a lawyer and a client, including legal opinions developed during representation but not communicated. [*Fireman's Fund*, 196 Cal.App.4th at 1273.] This privilege extends to disclosures made to individuals necessary for the client's benefit, such as other attorneys involved in the same case. [Evid. Code § 952; *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1153-1154.]

The common-interest doctrine prohibits waiver of privilege when parties with a shared legal interest exchange confidential information. It applies only if the communications advance

their joint legal interest, and the information would normally be privileged. [*OXY Resources Cal. LLC v. Superior Court* (2004) 115 Cal.App.4th 874, 887-891.]

Discussion.

Plaintiff's motion is **DENIED**.

The information in entries 62, 63, and 64 of Defendants' privilege log is sufficient. When claiming privilege or attorney work product protection, the objecting party must provide "sufficient factual information" to allow others to assess the claim's merits. [Code Civ. Proc. § 2031.240, subd. (c)(1).] A privilege log must include (1) the identity of each document claimed as privileged or protected, (2) its author, (3) recipients, (4) date of creation, and (5) the specific privilege or protection asserted. [*Hernandez v. Superior Court* (2003) 112 Cal.App.4th 285, 291-292, fn. 6; Code Civ. Proc. § 2031.240, subd. (c)(2).] The entries in question meet these requirements and are described as "Correspondence between counsel re: legal strategy and settlement." [Privilege Log, Exh. 1 to Dixon Decl. at Nos. 62-64.] This description is sufficient for the Court to evaluate Defendants' privilege claim. [*Wellpoint Health Networks, Inc. v. Superior Court* (1997) 59 Cal.App.4th 110, 130 ("The information in the privilege log must be sufficiently specific to allow a determination of whether each withheld document is or is not [in] fact privileged.")]. The uniform description does not hinder privilege evaluation, and the log need not include detailed narratives. The term "legal strategy" denotes attorney impressions, conclusions, or opinions, supporting a claim of absolute work-product protection. [Code Civ. Proc. § 2018.030, subd. (a).] The log also identifies the participants—three attorneys representing Hartnell's interests in workers' compensation, section 132a, and civil matters. This communication occurred in the context of coordinating litigation and settlement strategies for a common client, even though these attorneys are from different firms.

Defendants have established a prima facie claim of work-product protection over these attorney-to-attorney communications regarding strategy and settlement. Plaintiff's argument that any common-interest doctrine must be independently demonstrated is unpersuasive because these attorneys were, in fact, all operating within the same tripartite or extended client structure—Hartnell, its administrator, and retained counsel. Work-product protection applies even when transmitted among counsel for the same client, and attorney-client privilege may also attach to uncommunicated legal opinions. [*Fireman's Fund*, 196 Cal.App.4th at 1273-1274.] Hartnell is a self-insured employer that works through Keenan as its third-party administrator for workers' compensation claims. Communications among attorneys retained to represent Hartnell or its administrator constitute communications "in furtherance of the client's interest," and are protected. [*Bank of America*, 212 Cal.App.4th at 1083, 1090.] Nothing in Plaintiff's showing proves that these communications involved attorneys representing legally different principals rather than counsel coordinating for the same client. In fact, on page 4, lines 11 through 24, of Plaintiff's reply, the point that Hartnell is the client is supported because it mentions the attorneys working together for Hartnell to address each part of the claims against it and its employees. "When an insurer hires counsel to defend its insured, a tripartite attorney-client relationship is created among the insurer, the insured, and counsel. As a result, confidential communications between either the insurer or the insured and counsel are protected by the attorney-client privilege, and both the insurer and insured hold the privilege. Additionally,

counsel's work product remains protected even when shared with the insurer." [*Id.* at 1083.] Here, the "third party" is Hartnell's worker's compensation administrator, an insurance company contracted by Hartnell to provide coverage. In *Bank of America*, the court pointed out that "the same tripartite attorney-client relationship arises when a title insurer hires counsel to pursue an action on behalf of the insured under the title policy." [*Ibid.*]

The Court declines Plaintiff's request for an in camera review. The Court cannot compel disclosure of attorney-client communications solely to assess privilege. Still, it can examine such materials in camera to see if an exception or waiver applies when a content-based evaluation is needed. [*Costco*, 47 Cal.4th at 737, fn. 4; *OXY Resources*, 115 Cal.App.4th at 896.] A party requesting this review must prove good cause. [*Doe v. United States Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1436.] Here, Defendants have satisfied their burden to demonstrate privilege, while Plaintiff has failed to show good cause for an in camera inspection.

Plaintiff's sanctions request is **DENIED**. Defendant's opposition was substantially justified. [Code Civ. Proc. § 2031.310, subd. (h).]

Conclusion.

Plaintiff's motion and request for sanctions are **DENIED**. Defendants shall prepare the Proposed Order consistent with this Tentative Ruling.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.